REQUEST FOR PROPOSAL

FOR

CONTRACT PACAKAGE # 6 – SKYLIGHT WORK

FOR

PRIVATE RESIDENCE (FE 97),

AT

PLOT # 97,98 & 99 FLORIDA ESTATE, KESHAVNAGAR,

PUNE

CLIENT	: FE 97
ARCHITECTS	: TAO ARCHITECTURE PVT LTD
PROJECT	: PROPOSED PRIVATE RESIDENCE PROJECT
MEP CONSULTANT	: TRANSVEN CONSULTING PVT. LTD
PMC	: MADHAV LIMAYE CONSULTING LLP
LOCATION	: PLOT # 97,98 & 99 FLORIDA ESTATE, KESHAVNAGAR, PUNE

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MADHAV LIMAYE CONSULTING LLP

2nd Floor, Demech house, Law college road, Pune - 411004

DISCLAIMER

1. This Request for Proposal ("**RFP**") is being issued for the selection of one Selected Bidder for carrying out Skylight works (hereinafter the "**Works**") at the Location (hereinafter defined). The information contained in this RFP is being provided by the Client ("**Client**") for the limited purposes of enabling the entities to whom this document has been issued ("**Interested Parties**") to submit a binding proposal ("**Proposal**") for carrying out the Works and for no other purpose. In no circumstances shall the Client, or its respective advisors, consultants, contractors, servants and/or agents incur any liability arising out of or in respect of the issue of this RFP, or the selection procedure.

2. The Client, its respective advisers, consultants, contractors, servants and/or agents do not accept any responsibility for the legality, validity, effectiveness, adequacy or enforceability of any documentation executed, or which may be executed, in relation to the Works. No legal or other obligation shall arise between an Interested Party and the Client unless and until the contract identified by the Client for the Works have been formally executed by the Client and the successful Interested Party and any conditions precedent to the effectiveness of such contract have been fulfilled. The Client shall not be obliged to appoint any of the Interested Parties to undertake the Works and reserves the right not to proceed with the selection process and to withdraw from the selection procedure, or any part thereof, at any time.

3. This RFP is a summary of available information and no reliance shall be placed on any information or statements contained herein, and no representation or warranty, expressed or implied, is or will be made in relation to such information and no liability is or will be accepted by the Client, its respective advisors, consultants, contractors, servants and/or its agents in relation to the accuracy, adequacy or completeness of such information or statements made, nor shall it be assumed that such information or statements will remain unchanged.

4. The information does not purport to be comprehensive or to have been independently verified. The Client will not be liable for any costs, expenses, however incurred by the Interested Parties in connection with the preparation of Proposal. The Client reserves the right to amend this RFP and any information contained herein and/or supplement the RFP and/or the selection process or the dates at any time by notice, in writing, to the Interested Parties and suspend and/or cancel the selection process. All suspensions, cancellations, amendments and supplements will be announced.

5. No person other than its Authorized Representative or Project Management Consultant ("**PMC**") engaged by the Client has been authorized by the Client to give any information or to make any representation not contained in this RFP and, if given or made, any such information or representation shall not be relied upon as having been so authorized.

6. Nothing in this RFP is, nor shall be relied upon as, a promise or representation as to the Client's ultimate decision in relation to the award of the Works. The Client reserves the right to change the basis of or the procedures (including the timetable) relating to the selection process, reject any, or all, of the Proposals, not to invite an Interested Party to proceed further, not furnish an Interested Party with additional information nor otherwise negotiate with an Interested Party in respect of the Works at any time.

REQUEST FOR PROPOSAL

PROJECT: Proposed Private residence at FLORIDA ESTATE, Keshavnagar, Pune.

This document covers the SKYLIGHT work of 'Proposed Private Residence'

Area: - Approx. Construction Area: = 12,000 Sqft

Contract Package # 6: Sky Light Works: - As per Annexure of BOQ & Drawings

The entire work is expected to be completed in **Four (4) months** including monsoon from the date of issue of letter of award.

The item rate with price shall be inclusive of the cost of all Materials, Labors, Machinery, Transport, Duties, Taxes, PF/ESI and any other applicable taxes etc except GST. GST at applicable rates will be paid extra.

The quantities included in the bill of quantities are likely to vary. No changes in the rates shall be considered for any variations in quantities as well as for any variation, change in government legislation, duties, and hike in petroleum product etc.

NOTICE TO THE CONTRACTOR AND GENERAL INSTRUCTIONS

1. RFP, on behalf of the Client is invited from a **pre-qualified contractor** who is competent, technically thorough with latest technologies in construction, in possession of necessary scaffolding / mechanized scaffolding, tools, tackles and equipments, ability to complete the project in stipulated period and financially sound, for the construction of similar projects preferably within Pune**.**
2. The Contractor is strongly advised to go through all the documents in connection with these works provided with this RFP very carefully.
3. Proposal shall be submitted electronically to the following.
    - Mrs. Rupali Bhise - contracts.pune@limaye.co
    - With Copy to Mr. Vivek Patil - vivek.patil@skeiron.com
4. The Contractor should not make any changes esp. in the BOQ while submitting its offer for the Work. Any deviation, if proposed shall be submitted in separate letter. Any such changes, if found, shall lead to rejection of the Proposal.
5. The Contractor should inspect the site of the proposed work before quoting his rates. He is also advised to inspect and examine the site and its surroundings and satisfy himself before submitting his Quotation as to the nature of the ground and sub-soil, the form and nature of the site, the means of access to the site, the accommodation they may require including that required for labour and in general shall himself obtain all necessary information as to risks, contingencies and other circumstances which may influence or effect his quotation. The Contractor shall be deemed to have full knowledge of the site, whether he inspects it or not and no extra charges consequent on any misunderstanding or otherwise shall be allowed. Any such inspection shall be conducted at the Contractor's own cost and expense.
6. A schedule of quantities (BOQ) in respect of each work and specifications accompany this RFP. The schedule of quantities is liable to alterations by omission, deductions or additions at the discretion of the PMC/Architect / Client. Each Proposal should contain not only the rates but also the cost of each item of Work entered in a separate column and all the items should be totaled up in order to show the aggregate cost of the entire Proposal. All corrections in the Proposal schedule shall be attested by the initials of the Bidder's. Corrections which are not attested may entail the rejection of the Proposal.
7. Special attention of the bidder is drawn to the alternative items, if any, in the schedule of quantities' the rates and amounts for these alternative items if any shall be duly filled in and the bidder is informed that his Proposal will not be considered unless the alternative rates are given for these items.

8. The item rates shall be inclusive of cost of scaffolding, SKYLIGHT material, labour, crane, manpower, machinery, tools and plants. The Proposal should include all charges for double scaffoldings, hire for any tools and plants, sheds for materials, marking out and cleaning of Site, and as mentioned in the specifications. The rates quoted by the bidder in the schedule of quantities will be deemed to be for the finished work to be measured on Site.
9. The calculations made by the bidder should be based upon probable quantities of the several items of work, which are furnished for the bidder's convenience in the schedule of quantities. But it must be clearly understood that the contract is not a lump sum contract, that neither the probable quantities nor the cost of the individual items, nor the aggregate cost of the entire Proposal will form part of the contract and that the employer, does not in any way assure the bidder, or guarantee that the said probable quantities are correct, or that the Work would correspond thereto.
10. Timely completion of the works is the essence of this contract and the time of completion must be strictly adhered to as specified.
11. No excuse as regards want to information of any particular point will be considered after the Proposal has been submitted. No advice of any change in rate or conditions after the submission / opening of Quotation shall be entertained.
12. The Contractor shall not in any case, after acceptance of a contract rate, be paid any extra charges for lead involved in transport of materials to site of work, erection and hire of T & P sheds, for materials, etc. or for any increase in price of materials or for any increase in wages of labour or for any other reasons whatsoever.
13. All taxes including ESI/PF, or any other tax etc. shall be payable by the Contractor and should in-built them in their quoted rates and no claim whatsoever in this respect shall be entertained. Only GST should be quoted separately.
14. No alteration which is made by the Contractor in the notice, instructions to the Contractors, the contract form, the General Conditions of Contract, Special Conditions of Contract, the drawings, specifications, additional specifications, bill of quantities accompanying the Proposal shall be recognized and if any such alterations are made, the Proposal is liable to be rejected.
15. No part of the contract shall be sublet/ assigned without the written permission of the Client/PMC nor shall transfer be made by power of attorney, authorizing others to receive payment on behalf of the Contractor.
16. The Proposal shall accompany the following information and schedules:
    a) A tentative construction programme – Bar Chart in MSP, showing the contractor's proposed sequence of operations together with the estimated time for each activity.
    b) Proposed supervision and control of works including the number and experience of the various grades of supervisory personnel for each month of the construction period along with dedicated safety officer.
    c) Schedule of labour requirements showing the total estimated labour force for each month of the construction period.
    d) Schedule of Machinery & Materials – Availability & Procurement.

    Along with the Proposal, the Contractor shall submit in hard copies a statement of facts in details as to the following items for the Contractor and his associates, if any.
    [A] Business and technical organization.
    [B] Financial resources.
    [C] Construction equipment available and to be used for performing the work.
17. The Contractor must furnish a list of any civil or criminal litigation he is a party to, if any, either as a respondent/plaintiff, accused or complainant. This includes any of the partners to the Client/PMC.
18. If the Contractor [or any of his legal partners] has at any time the accused in a criminal proceeding he must state so and give the outcome of the proceedings in a separate signed statement.
19. The Contractor / bidder, whether he submits this Proposal or not, shall treat the details of the RFP document as secret and confidential. In case the bidder does not quote, he shall return "ALL" the documents on the date fixed for receiving the Proposal.

20. At the time of agreement, the Contractor should after acceptance of the Proposal sign the necessary contract within 10 days of the above intimation of acceptance of his Proposal.
21. The Proposals submitted by all bidders shall remain valid for a period of ninety (90) days from the date of submission.
22. The Client/PMC/ reserves the right of rejecting the Proposals all or any of the Proposal, without assigning any reason, and does not bind itself to accept the lowest or to pay the expenses incurred in the preparation of the Proposal, or for any other reason thereof.

CONDITIONS OF CONTRACT

SECTION I- GENERAL CONDITIONS OF CONTRACT

1.0 Definitions

a. "**Architect**" means principal Architect appointed by the Client for architectural design i.e. M/s TAO Architecture Pvt. Ltd.

b. "**Consultant**" mean any person or persons duly appointed by the Client / Architect to act as 'Consultant' to render consultancy services in any area/field of activity connected with and arising out of the Project under a separate agreement setting out the consultant(s) responsibilities and terms.

c. "**Contract**" shall mean the agreement between the Client and the Contractor for the proper execution and successful completion of the Work in accordance with the Contract Documents.

d. "**Contractor**" shall mean the person or persons, firm, company or consortium whose Proposal has been accepted by the Client and includes the Contractor's legal representatives, successors and permitted assign.

e. "**Client /Owner**" means owner of the Private Residence shall be further mentioned in detail in the agreement.

f. "**Date of Commencement**" Except as otherwise specified in the Contract, the Commencement Date shall be the date of letter of award or any other date specified in the letter of award. The Contractor shall commence the Works on the Commencement Date.

g. "**Date of Completion**" of the Project and/or the specified area of a project will be the date when construction shall be completed, in accordance with the Contract Documents as modified by any change or variation orders, agreed to by the parties; so that the Owner can occupy the Project for the use it was intended for.

h. "**Defects Liability Period**" shall mean as defined in clause 28.

i. "**Final Completion**" shall mean as defined in clause 28.

j. "**Project**" shall mean the total execution of the works performed under this Contract and all other works contract packages awarded by the Owner at the Site (as defined hereinbelow) and amendments issued thereof.

k. "**Project Management Consultant / PMC**" means agency engaged by the Client, as the Project Management Consultant (PMC), to perform a managerial and consultancy role during term of this Project and shall co-ordinate, overlook and administer the activities performed by each stakeholder during all phases of the Project. 'M/s Madhav Limaye Consulting LLP is the PMC for the Project.

l. "**Site**" shall mean the location, plot 80, Florida Estate Florida Estate 'A' Co-operative Housing Society Ltd., Keshavnagar, Pune, Maharashtra.

m. "**Tender or Proposal**" shall mean the Contractor's offer to construct the Work in strict accordance with the Contract Documents.

n. "**Virtual Completion**" shall mean as defined in clause 28.

o. The terms "**and, "or", "and / or**" used in context with the description or enumeration of two or more items or components of Work of documentation or anything similar shall mean as is relevant and applicable to the text.

p. "**Work or Works**" shall mean and include all materials, labour, tools, plants, equipments, necessary to construct as per the requirements of this contract for full and entire execution of project till completion along with any amendments issued thereof.

q. "**Written notice**" shall be deemed to have been duly served if delivered in person to the individual or to a member of the firm or to an office of the corporation for whom it is intended or if delivered at or sent by registered mail to the last business address known to him who gives the notice.

2.0 Contract Documents

The following documents shall constitute the Contract Documents.

[a] Articles of Agreement
[b] Conditions of Contract (General and Special Conditions)
[c] Specifications
[d] Bills and Quantities
[e] Tender Drawings

The Contract Documents shall remain in the custody of the Client/PMC so as to be available at all reasonable times for the inspection of the owner/client or of the Contractor.

After the award of the Contract, the Contractor shall without charge be supplied with all such further drawings and details as may be prepared by the Architect and other consultants from time to time as the work proceeds as are reasonably necessary either to explain or amplify the Contract drawings or to enable the Contractor to carry out and complete the Work in accordance with these conditions. Provided all such drawings shall be a reasonable development of the Work described in the Contract Document.

The Contractor shall keep one copy of the Technical specifications, descriptive schedule or other like document referred to in this clause and one copy of the Contract drawings and such other drawings and details supplied to him, from time to time and referred to in this clause and all other clauses referred in this document, on the Site so as to be available to the Architect or his representative at all reasonable times.

None of the documents herein before mentioned shall be used by the Contractor for any purpose other than this Contract and neither the Client nor the Architect shall divulge or use, except for the purpose of this Contract, any of the prices in the contract bills.

The Contractor shall, if so requested by the Client, forthwith return all drawings, details, specifications, descriptive schedules and other documents of like nature, which bears his name, or that of the consultant.

3.0 Type of Contract

The contract shall be an item rate Material + Labour Basis contract. The Contractor shall be paid for the as measured at site quantities at the finalized item rates.

4.0 Schedule of Quantities

The schedule of quantities given in bill of quantities (BOQ) is provisional and is meant to indicate the intent of the Work and to provide a uniform basis for Proposal. The Owner and the Architect reserves the right to increase or decrease any of the quantities or to totally omit any item of Work and the Contractor shall not claim any extras or damages on these grounds.

So also, the quantities mentioned in the bill of quantities are approximate and if the actual quantities executed are less than the schedule, the Contractor shall not claim any damages for the same.

5.0 Contract Drawings

5.1 In general, the drawings shall indicate dimensions, position and type of construction; the Technical specifications shall indicate the qualities and the methods; and the bill of quantities shall indicate the quantum and the rate for each item of Work. Any work indicated on the drawings and not mentioned in the specification or vice versa shall be furnished as though fully set forth in both. Work not specifically detailed, called for, marked or specified shall be the same as similar parts that are detailed, marked or specified.

5.2 The Contractor's work shall not deviate from the drawings and the specifications. The Architect's interpretation of these documents shall be final.

5.3 Errors or inconsistencies discovered in the drawings and specifications shall be promptly brought to the attention of the Architect, through the PMC, for interpretation or correction. Local conditions, which may affect the Work, shall likewise be brought to the PMC's attention. If at any time, it is discovered that Work is being done which is not in accordance with the Contract drawings and specifications, the Contractor shall correct the work immediately. Corrections of defective work shall not be a basis for any claim for extension of time. The Contractor shall not carry-on work except with the knowledge of the PMC.

5.4 Figured dimensions on the scale drawings and large size details shall govern. Large size details shall take precedence over small-scale drawings. Any work done before receipt of such details, if not in accordance with the same, shall be removed and replaced or adjusted, as directed, by the Contractor without expense to the Owner. The general conditions apply with equal force to all the Work including authorized extra works.

5.5 All drawings, bills of quantities and specifications and copies thereof furnished by the Architect are the Client's property. They shall not be used on any other Work and shall be returned at his request on completion or termination of the Contract.

6.0 Contract Sum

Shall mean the sums referred to in the Contract Documents for the Contractor's performance of the Work.

The Contract Sum shall not be adjusted or altered in any way whatsoever other than in accordance with the express provisions of these conditions. Any error, whether of arithmetic or not, in the computation of the Contract Sum shall be deemed to have been accepted by the parties hereto.

7.0 Contract Bills

7.1 The quality and quantity of the Work included in the Contract Sum shall be deemed to be that which is set out in the Contract which bills unless otherwise expressly stated in respect of any specified item, shall be deemed to have been prepared in accordance with the principles of the standard method of measurement of building works last issued by the Indian Standards; but same as aforesaid nothing contained in the contract bills shall override, modify or affect in any way whatsoever the application or interpretation of that which is contained in these conditions.

7.2 Any error in description or in quantity or omission of items from the contract bills shall not vitiate this Contract but shall be corrected and deemed to be a variation required by the Client /Architect.

8.0 Scope, Extent and Intent

8.1 *Scope*: The general character and the scope of the work is illustrated and defined by the specifications and the Bills of Quantities herewith attached and by the Quotation drawings. If the Contractor shall find any discrepancy in or divergence between the contract drawings and or the contract bills, he shall immediately give to the architect a written notice specifying the discrepancy or divergence and the architect shall issue instructions in regard thereto.

8.2 *Extent*: The Contractor shall carry out and complete the work in every respect in accordance with this contract and with the directions of, and to the reasonable satisfaction of the architect. The architect may in his absolute discretion and from time to time, issue further drawings, details and/or written instructions, written directions and written explanations all of which are collectively referred to as architect's instructions. All such drawings and instructions shall be consistent with the contract document; true developments thereof and reasonably inferable there from.

8.3 *Intent*: The intention of the document is to include all labour, equipment and transportation necessary for the proper execution of the work. All such drawings and instructions shall be consistent with the Contract document, true developments thereof and reasonably inferable there from.

The Contractor shall note that there is no order of precedence between Tender Drawings, Technical Specifications and Bill of Quantities, the more stringent condition /requirement as determined by the Client/PMC at its sole discretion shall govern.

9.0 Architect's Instructions

9.1 The Contractor shall forthwith comply with and duly execute any works comprised in, such instructions issued to him by the Architect in regard to any matter, in respect of which the Architect is expressly empowered by these conditions to issue instructions; provided always that verbal instructions, directions and explanations given to the Contractor or his representative by the Architect shall, if involving a variation, be confirmed in writing by the Client /PMC.

9.2 Upon receipt of what purports to be the instruction; issued to him by the Architect, the Contractor if in doubt may request the Architect/ PMC to specify in writing, the provision of these conditions that empowers the issue of the said instruction. The Architect shall forthwith comply with any such request, and if the Contractor shall thereafter comply with the said instruction; then the issue of the same shall be deemed, for all purposes of this Contract, to have been empowered by the provision of these conditions specified by the Architect in answer to the Contractor's request.

9.3 All instructions issued by the Architect/PMC shall be in writing. Any instruction issued orally shall be of immediate effect, but shall be confirmed in writing by the Contractor to the Architect/PMC within seven days, and if not dissented from in writing, by the Architect/PMC to the Contractor within seven days from receipt of the Contractor's confirmation, shall take effect as from the expiry of the latter said seven days:

Provided Always

[a] That if the Architect/PMC within seven days of giving such an oral instruction shall himself confirm the same in writing, then the Contractor shall not be obliged to confirm as aforesaid, and the said instruction shall take effect as from the date of the Architect/ PMC's confirmation.

[b] That if neither the Contractor nor the Architect/PMC shall confirm such an oral instruction in the manner and at the time aforesaid, yet the Contractor shall have nevertheless complied with the same; then the Architect/PMC may confirm the same in writing at any time prior to the issue of the Final Certificate, and the said instruction shall thereupon be deemed to have taken effect on the date on which it was issued.

10.0 Facilities and Co-operation

In the case of Works indicated on the drawings, but not included in the Contract, the Contractor shall provide necessary facilities and co-operation for any working agency or supplier, who may be engaged / approved by the Client and the Architect. The Contractor shall do all cutting, filling or patching of his Work that may be required to make its several parts come together properly and fit it to receive or be received by work of other contractors shown upon or reasonably implied by the drawings and specifications for the completed structure, and he shall make good after them as directed. Any cost incurred by the defective or ill-timed work shall be borne by the agency responsible, PMC in his exclusive right shall make rectify the defective work and debit the cost incurred to the account of agency responsible.

The Contractor shall not endanger any Work by cutting, excavating or otherwise altering the Work and shall not cut or alter the Work of any other contractor, save with the consent of the PMC / Architect

11.0 Setting out

The Architect shall determine any lines or levels which may be required for the execution of the

Work and shall furnish to the Contractor by way of accurately dimensioned drawings such information as shall enable the Contractor to set out the Work at ground level.

The Contractor in coordination with PMC shall set out and level the Work and shall be responsible for the accuracy of the same. He shall provide all the instruments (including Total Station) and attendance required by the Architect for checking the Work. He shall, entirely at his own cost, amend to the satisfaction of the Architect any error found at any stage, which may arise through inaccurate setting.

12.0 Site

12.1 *Visit*: Before submitting Proposal, the Contractor shall have visited and examined the Site and satisfied himself as to the nature of the existing roads or other means of communication; the character of the soil and of the excavations; the correct dimensions of the Work and the facilities for obtaining any special articles called for in the Contract Document; and shall have obtained his own information on all matters affecting the continuation and progress of the Works.

No extra charge made in consequence of any misunderstanding or incorrect information on any of these points, or on the grounds of insufficient description, will be allowed. Should the Contractor after visiting the Site, find any discrepancy, omissions, ambiguities or conflicts in or among the Contract Document, or to be in doubt as to their meaning, he shall bring the questions to the PMC's attention, not later than ten days before the last date for submission of the Proposal.

12.2 *Possession*: The Contractor shall be allowed admittance to the Site on the Date of Commencement and he shall there upon and forthwith begin the Work and shall regularly proceed with and complete the same on or before the Date of Completion stated in the Contract.

12.3 *Treasures*: All fossils, antiquities and other objects of interest or value which may be found on the Site at commencement or during the progress of the Work shall be the property of the Owner. The Contractor shall carefully take out and preserve all such fossils, antiquities and objects to the satisfaction of the Owner/PMC and shall immediately deliver the same in their discovered state into the possession of the Owner or to such person or persons indicated by the Owner. It shall be the sole responsibility of Contractor to protect these findings and take reasonable precautions to prevent his personnel or others from removing or damaging any of these findings.

13.0 Progress Chart

The Contractor shall prepare progress charts / schedule and submit the same for approval of the PMC and for his record within [14] fourteen days of the award of the Contract. The charts shall indicate the Date of Commencement and expected completion of each of the items of the Work. The chart shall also indicate the scheduling of samples, shop drawings and approvals. Due allowance for other work package activities shall be made.

14.0 Access of Architect/PMC to the Works

The Architect/PMC and his representatives shall, at all reasonable times have access to the Works and to the workshops or other places of the Contractor where Work is being prepared for the Contract and shall do all things reasonably necessary to make such right effective.

15.0 PMC's Status and Decisions

15.1 The PMC shall be the Owner's representative during the construction period. The PMC shall visit the Works to familiarize himself, generally with the progress and the quality of the Work and determine in general, if the Work is proceeding in accordance with the Contract. He shall not be required to make exhaustive or continuous, on-site inspections, to check the quality or quantity of the Work and he shall not be responsible for the Contractor's failure to carry out the construction in accordance with the Contract. During visits and on the basis of his observations while at the Site he shall keep the Owner informed of the progress of the Work and shall endeavor to guard the Owner

against defects and deficiencies in the Work of the Contractor and he shall condemn Work which fails to confirm to the Contract. He shall have authority to act on behalf of the Owner, only to the extent expressly provided in the Contract [or otherwise agreed in separate agreement with the Owner]. He shall have authority to stop the Work whenever such stoppage may be necessary in his opinion to ensure the proper execution of the Contract.

15.2 The Contractor shall afford PMC every facility and assistance for inspecting the Works and materials, and for checking and measuring time and materials.

The PMC or representative of the Architects shall have power to give notice to the Contractor or to his representative, the non-approval of any Work or materials, and such Work shall be suspended or the use of such materials shall be discontinued until the decision of the PMC is obtained. The Works will, from time to time, be examined by the Architect, the PMC; but such examination shall in any way exonerate the Contractor from the obligation to remedy any defects which may be found to exist at any stage of the Works or after the same is completed.

15.3 *Dismissal*: The Contractor shall, on the request of the PMC, immediately dismiss from the Works, any person employed thereon by him, who may, in the opinion of the PMC, be incompetent or misconducts himself; and such person shall not be again employed on the Work, without the permission of the PMC.

16.0 Contractors Field Organization and Equipment

16.1 *Engineer-in-Charge*: The Contractor shall constantly keep on his work, during its progress, one dedicated qualified and competent Engineers-in-Charge, who will be responsible for the carrying out of the Works to the true meaning of the drawings. Specifications and schedule of quantities, Architect's instructions and directions to the satisfaction of the PMC /Architect. Any directions or instructions given to him by the Architect/PMC shall be deemed to have been issued to the Contractor. Attention is called to the importance of requesting instructions from the PMC before undertaking any Work where the Architect's/PMC directions or instructions are required. Any such work done in advance of such instructions will be liable to be removed.

16.2 *Equipment*: The Contractor shall provide and install all necessary hoists, ladders, Tower Crane, scaffolding, tools, tackles, plants and all transport for labour materials, necessary for the proper carrying on of execution and completion of the Work, to the satisfaction of the PMC /Architect.

16.3 *Storage of Materials*: The Contractor shall provide, erect and maintain proper sheds for the storage and protection of the materials etc. and also for the execution of Work, which may be prepared on the Site.

16.4 *Sanitary Conveniences*: The Contractor shall provide and erect all necessary sanitary convenience for his labor, maintained in a clean orderly condition and clean and deodorize the ground after removal.

16.5 *Scaffolding, Staging, Guardrails*: The Contractor shall provide scaffolding, staging, guardrails, and temporary stairs which shall be required during construction. The support for the scaffolding, staging, guardrails and temporary stairs shall be strong, and adequate for the particular situation. The temporary access to the various parts of the building under construction shall be rigid and strong enough to avoid any chance of mishaps. The arrangement proposed, shall be subject to the approval of the PMC / Consultant.

16.6 *Taxes*: All taxes including LBT, ESI/PF toll, sales tax, royalty or any other tax etc. shall be payable by the Contractor and should in-built them in their quoted rates and no claim whatsoever in this respect shall be entertained. Only GST should be quoted separately in the BOQ.

17.0 Statutory Obligations, Notices, Fees and Charges

17.1 The Contractor shall comply with and give, all notices required by any government authority, instruments, rule or order made under any Act of Parliament or any regulation or Bye-law of any local authority relating to the Work or with whose system, the same is or will be connected. The Contractor before making any variation from the Contract drawings or Contract bills necessitated by such compliance shall give to the PMC a written notice specifying and giving reasons for such variations and the PMC may issue instructions in regard thereto. If within 10 days of having given the said written notice, the Contractor does not receive any instructions in regard to the matters therein specified, he shall proceed with the Work conforming to the Act of Parliament, instrument, rule, order and regulations or Bye-laws in question, and any variation thereby necessitated shall be deemed to be a variation required by the authority.

17.2 The Contractor shall pay and indemnify the Client against liability in respect of any fees or charges [including any rates and taxes] legally demandable under any Act of Parliament, instrument, rule or order or any regulation or Bye-law of any local authority in respect of the Work.

18.0 Royalties and Patent Rights-If Applicable

If Applicable, all royalties or other sums payable, in respect of supply and use in carrying out the Work as desired by or referred to the Contract bills of any patented articles, process or inventions shall be deemed to have been included in the Contract Sum. The Contractor shall indemnify the Owner from and against all claims, proceedings, damages, costs and expenses which may be brought or made against the Owner, or to which he may be put, by reason of the Contractor infringing or being held to have infringed any patent rights in relation to any such articles, processes and inventions.

19.0 Licenses and Permits for Materials under Government Control- If Applicable

Licenses and permits for all materials under government control shall be obtained by the Contractor at his own cost through the collaboration and help of the Owner (for legitimate documents from him only), the Contractor shall include in his Proposal, all transport charges and other expenses likely to be incurred to bring the materials to the Site.

20.0 Water & Electricity for Construction

The Contractor will be provided power and water at one source point thereafter has to make his own arrangements for electrical distribution, and storage of water, pipelines, and maintenance of pumps, electrical supply system and general maintenance of the water system at his own cost and will not be reimbursed by the Client. Drinking water for labour & his Staff, shall be arranged by Contractor with storage.

The Client shall provide power and water from the available source. In case of non-availability due to reasons beyond control of the Client, scarcity or Emergency, the Contractor shall be making arrangement of the same and no additional cost to the Client.

21.0 Artists and Tradesmen

The Contractor shall permit the execution of Work, not forming part of this Contract, by artist's tradesmen or others engaged by the Owner. Every such person shall, for the purposes of the relevant clause, or these conditions be deemed to be the person for whom the Owner is responsible and not be the Contractor.

22.0 Separate Contracts

The Client/ PMC reserve the right to let other contracts in connection with his work under similar general conditions. The Contractor shall afford other contractors reasonable opportunity for the introduction and storage of their materials and the execution of their work, and shall properly connect and co-ordinate his work with theirs. If any part of the Contractor's/ its sub-contractor's

work depends for proper execution or results, upon the work of any other contractor/ sub- contractor, the Contractor shall inspect and promptly report to the PMC, any defects in such Work that render it unsuitable for such proper execution and results. Failure of the Contractor to so inspect and report, shall constitute an acceptance of the other contractor's work as fair and proper for the reception of his Work; except as to defects which may develop in the other contractor's or sub-contractor's work after the execution of the Work, after ensuring the proper execution of his subsequent Work the Contractor shall measure Work already in place and shall at once report to the PMC / Architect any discrepancy between the executed Work and the drawings.

23.0 Deduction for Uncorrected Work

If the PMC deems it inexpedient to correct Work damaged or not done in accordance with the Contract, an equitable deduction from the Contract Sum shall be made therefor.

The Contractor shall furnish promptly without additional charge all reasonable facilities, labour and materials necessary for the safe and convenient inspection and test that may be required by the PMC / Architect.

24.0 Defects

24.1 The Contractor shall make good at his own cost and to the satisfaction of the Architect/PMC, all defects, shrinkages or small faults, arising in the opinion of the PMC from work or materials not being in accordance with the drawings or specifications or schedule of quantities or the instructions of the Architect, which may appear within Defects Liability Period.

24.2 Such defects, shrinkage's shall upon directions in writing of the Architect/PMC / Client, and within such reasonable time as shall be specified therein be amended and made good by the Contractor, at his own cost unless the Architect/PMC / Client shall decide that he ought to be paid for such amending and making good and in case of default the Owner may employ and pay other contractor to amend and make good such defects, shrinkage, settlements or other faults and all damages loss and expense consequent thereon or incidental thereto shall be made good and borne by the Contractor and such damage, loss or expense shall be recoverable from him by the Owner or may be deducted by the Owner upon the PMC's certificate in writing from any amount due or may become due to the Contractor or the Owner may, in lieu of such amending and making good by the Contractor deduct from any moneys due to the Contractor a sum to be determined by the Architect /PMC / Client as equivalent to the cost of amending such work and in the event of the retention amount being insufficient recover the balance from the Contractor, together with any expenses the Owner may have incurred in connection therewith.

25.0 Possession, Completion and Postponement

25.1 On the Date for Commencement stated in these conditions, possession of the Site shall be given to the Contractor who shall thereupon begin the Works and regularly and diligently proceed with the same, and who shall complete the same on or before the Date for Completion stated in the said the Contract subject nevertheless to the provisions for extension of time contained in these conditions.

25.2 The PMC may issue instructions in regard to the postponement of any Work to be executed under the provisions of this Contract.

25.3 If at any time or times before Virtual Completion of the work the Client with the consent of the Contractor shall take possession of any part of parts of the same for handing over to the finishing contractor or other agency, then notwithstanding anything expressed or implied elsewhere in this Contract:

25.4 Such part or parts shall not be deemed to be virtually complete.

25.5 Virtual Completion of such part or parts would occur on the completion of the last part of the structure under this Contract.

25.6 The Contractor shall not claim that such part or parts are complete and request refund of payments in lieu thereof.

26.0 Extension

Upon it becoming reasonably apparent that the progress of the Works is delayed, the Contractor shall forthwith give written notice of the cause of the delay to the PMC, and if in the opinion of the PMC, the completion of the Work is likely to be or has been delayed beyond that date for completion stated in the Contract document or beyond any extended time previously fixed under this clause.

26.1 By force majeure, or

26.2 By reason of any exceptionally inclement weather, or

26.3 By reason of loss or damage occasioned by any one or more of the contingencies referred to in relevant clause of these conditions, or

26.4 By reason of civil commotion, local combination of workmen strike or lockout affecting any of the trades employed upon the Works or any of the trades engaged in the preparation, manufacture or transportation of any of the goods or materials required for the Work, or

26.5 By reason of PMC's instructions issued under the relevant clauses of these conditions, or

26.6 By reason of the Contractor not having received in due time necessary instructions, drawings, details or levels from the Architect for which he specifically applied in writing on a date which having regard to the date for completion stated in the appendix to these conditions or to any extension of time then fixed under this clause was neither unreasonably distant from nor unreasonably close to the date on which it was necessary for him to receive the same, or

26.7 By delay on the part of artists, tradesmen or others engaged by the Owner in executing work not forming part of this Contract, or

26.8 By reason of the opening up for inspection of any Work covered up or of the testing of any of the Work, materials or goods in accordance with the relevant clause of these conditions [including making good in consequence of such opening up or testing] unless the inspection of test showed that the Work materials or goods were not in accordance with this Contract, or

26.9 By reason of the Contractor's inability for reason beyond his control and which he could not reasonably have foreseen at the date of this Contract to secure such labour goods or materials as are essential to the proper carrying out of the Works.

Then, upon receiving request from the Contractor with its estimated time, the PMC shall as soon as he is able to estimate the length of the delay beyond the date or time aforesaid make in writing a fair and reasonable extension of time for completion of the Works, provided always that the Contractor shall use constantly his best endeavors to prevent delay and shall do all that may reasonably be required to the satisfaction of the PMC /Architect to proceed with the Work.

27.0 Damages for Non-completion / Liquidated Damages

If the Contractor fails to complete the Works by the date specified in these conditions or within any extended time fixed under the relevant clause(s) of these conditions and the PMC certifies in writing that in his opinion the same ought reasonably so to have been completed, the Contractor shall pay or allow to the Owner a sum calculated at the rates stated below as agreed "Liquidated Damages" for the period during which the said Work shall so remain or have remained incomplete, the Owner may deduct such damages from any monies otherwise payable to the Contractor under this Contract.

The Contractor hereby agree that the damages which the Owner will sustain as a result of

Contractor's failure to meet the completion time, are difficult or impossible to determine with certainty and, therefore, have in good faith estimated as fair compensation (and not as a penalty) the liquidated damages as set forth herein.

The Contractor should adhere to the time for completion of Work. If the timelines not achieved by the Contractor, the Contractor shall pay the Owner half [0.5] percent of the Contract Sum per week of delay, limited to five [5] percent of the Contract Sum.

28.0 Virtual Completion, Defects Liability Period and Final Completion

28.1 Virtual Completion

When in the opinion of the Architect/PMC the works are practically completed, he shall forthwith issue a certificate to that effect and virtual completion of the Works shall be deemed for all the purpose of this Contract to have taken place on the day named in such certificate.

28.2 Defects Liability Period

a) Defects Liability Period (DLP) shall be the 24 months period after Virtual Completion and any period extended as a result of rectification of the work/change orders, between the Virtual Completion and the Final Completion of the Work, and during which period the Contractor shall be bound to replace and / or rectify and make good all defective materials, equipment and/or workmanship which arise in the Works or come to notice subsequent to the Virtual Completion of the Works and prior to the Final Completion of the Works.

b) Any defects, shrinkage or other faults which are appeared within the Defects Liability Period which are due to materials and workmanship not in accordance with this Contract shall be specified by the PMC / Owner in a schedule of defects which shall be delivered to the Contractor not later than 14 days after the expiration of the said defects liability period and within a reasonable time after receipt of the schedule the defects, shrinkage's and other faults therein specified shall be made good by the Contractor and [unless the Architect / PMC/ Owner shall otherwise instruct in such case the Contract sum shall be adjusted accordingly] entirely at his own cost.

c) Notwithstanding sub-clause (b) of this conditions the Architect/ PMC / Owner may whenever he considers it necessary so to do, issue instructions requiring any defect, shrinkage's or other fault which shall appear within the DLP and which is due to materials and workmanship not in accordance with this Contract to be made good and the Contractor shall within a reasonable time after receipt of such instructions comply with the same [and unless the architect shall otherwise instruct in which case the contract sum shall be adjusted accordingly] entirely at his own cost.

28.3 Final Completion

When in the opinion of the PMC /Architect / Owner any defects, shrinkages or other defaults which he may have required to be made good under sub-clause (34.2) of this condition shall have been made good he shall issue a certificate ("**Final Completion Certificate**") to that effect, and completion of making good defects shall be deemed for all the purposes of this Contract to have taken place on the day named in such certificate.

In no case shall the Contractor be required to make good at his own cost any damage which may appear after the Final Completion of the Work, unless the Architect/PMC shall certify that such damage which is took place before Final Completion of the Works.

29.0 Loss and expenses caused by disturbance of regular progress of the Works:

29.1 If upon written application being made to him by the Contractor, the PMC is of the opinion that the Contractor has been involved in direct loss and/or expense for which he would not be reimbursed

by a payment made under any other provision in this Contract by reason of the regular progress of the Works or of any part thereof having been materially affected by:

[a] The Contractor not having received in due time necessary instructions, drawings detail or levels from the PMC for which he specifically applied in writing on a date which having regard to the date of completion stated in the appendix to these conditions was neither unreasonably distant from nor unreasonably close to the date on which it was necessary to receive the same; or

[b] The opening up for inspection of any work covered up or the testing of any work, materials or goods in accordance with the relevant clause of these conditions [including making good in consequence of such opening up or testing], unless the inspection or test showed that the work materials or goods were not in accordance with this contract; or

[c] Any discrepancy or divergence between the Contract drawings and/or the Contract bills; or

[d] Delay on the part of the artists, tradesman or others engaged by the Owner in executing work not forming part of this Contract; or

[e] Client's instructions issued in regard to the postponement of any Work to be executed under the provisions of this Contract; and if the written application is made within a reasonable time of it becoming apparent that the progress of the Work or of any part thereof has been affected aforesaid:

Then the PMC in consultation with the Client shall ascertain the amount of such loss and/or expense. Any amount from time to time so ascertained shall be added to the amount which would otherwise be stated as due in such certificate.

29.2 The provisions of these conditions are without prejudice to any other rights and remedies which the Contractor may possess.

30.0 Payment Withheld

The PMC may be withheld the Contractor's payment, on account of a subsequently discovered evidence nullify the whole or a part of any certificate to such extent as may be necessary in this reasonable opinion to protect the Owner from loss.

30.1 Defective work not remedied.

30.2 Failure of the Contractor to make payments properly to sub-contractor or for materials or labour.

30.3 A reasonable doubt that the Contract can be completed for the balance then unpaid.

30.4 Damage to another contractor or sub-contractor.

30.5 Claims filed on reasonable evidence indicating probable filing of claims.

When the above grounds are removed payments shall be made for amounts withheld because of them.

31.0 Injury to Persons and Property Owners

31.1 The Contractor shall be liable for and shall indemnify the Owner/PMC and its representatives against any civil/criminal/financial liability, loss, claim or proceedings whatsoever arising out of any statute or at a common law in respect of personal injury or the death of any person whosoever arising out of or in the course of or caused by the carrying out of the Works, unless due to any act or neglect of the Owner or of any person for whom Owner is responsible.

31.2 Except for such loss or damages as is at the risk of the Owner under the relevant clause(s) of this conditions [if applicable] the Contractor shall be liable for and shall indemnify the Owner/PMC and its damage whatsoever to any property real or personal insofar as such injury or damage arise out of or in the cause of or by reason of the carrying out of the Works, and provided always that the same is due to any negligence, omission or default of the Contractor, his servants or agents or of its any sub-contractor, his servant or agent.

32.0 Insurance against Injury to Persons and Property

32.1 Without prejudice to his liability to indemnify the Owner/PMC and its representatives under the relevant clause of this condition, the Contractor shall maintain:

[a] Such insurance's as are necessary to cover the liability of the Contractor or as the case may be of such sub-contractor, in respect of personal injuries or deaths arising out of or in the course of or caused by the carrying out of the Work; and

[b] Such insurance's as may be specifically required by the Contract bills in respect of injury or damage to property real or personal arising out of or in the course of or by reason of the carrying out of the Work, and caused by any negligence, omissions or default of the Contractor, his servants or agents or, as the case may be of such sub- contractor, his servants or agents.

The Contractor shall produce for inspection the relevant policy or policies of insurance together with the receipts in respect of premiums paid under such policy or policies as and when required so to do by the PMC provided always that as and when maybe reasonably required by the Client the production by either by the Contractor any sub- contractor of a current certificate of insurance from the company or firm which shall have issued the policy or policies aforesaid shall be a good discharge of the Contractor's obligation to produce or to cause the production of the policy or policies and the receipts in respect of premium paid.

32.2 [a] The Contractor shall maintain in the joint names of the Owner and the Contractor such insurance's as may be required in respect of any expense, liability, loss, claim, or proceedings which the Owner may incur or sustain by reason of injury or damage to property real or personal arising out of or in the course of or by reason of the carrying out of the Work, and caused otherwise than by the negligence, omission or default of the Contractor, his servants or his agent or any sub-contractor, his servants or agents.

[b] Any such insurance as if referred to in the immediately proceeding paragraph shall be placed with insurers to be approved by the PMC and the Contractor shall have to deposit with him the policy or policies and the receipts in respect of premium paid.

32.3 Should the Contractor or any of its sub-contractor make default in insuring or in continuing to insure as provided in sub- clauses (1) & (2) of these conditions the Owner may himself insure against any risk with respect to which the default shall have occurred and may deduct a sum equivalent to the amount paid in respect of premiums from monies due to or become due to the Contractor.

32.4 The policies for the aforementioned insurance shall contain a waiver of subrogation in favor of the company.

33.0 Termination by the Owner

33.1 *Default*: If the Contractor shall make default in any one or more of the following respects, that is to say:

[a] If he without reasonable cause, wholly suspends the carrying out of the Works before completion thereof, or

[b] If he fails to proceed regularly and diligently with the Works, or

[c] If he refuses or persistently neglects to comply with the written notice from the PMC

requiring him to remove defective work or improper materials or goods and by such refusal or neglect the work is materially affected,

Then the PMC/Owner may give him the notice specifying the default, and if the Contractor either shall continue such a default for 14 days after receipt of such a notice and shall at any time thereafter repeat such a default [whether previously repeated or not]. Then the Owner without prejudice to any other rights or remedies may within ten days after such continuance or repetition of notice forthwith determine the employment of the Contractor under his contract, provided that such notice shall not be given unreasonably or veraciously.

33.2 *Bankruptcy of Contractor*: In the event of the Contractor becoming bankrupt or making a composition or arrangement with his creditors or being a company having a winding up order made or [accept for purposes of reconstruction] a resolution for voluntary winding up past or a receiver or manager of his business or undertaking duly appointment or possession taken. By or on behalf of the holders of any debentures secured by a floating charge, of any property comprised in or subject to the floating charge the employment of the Contractor under his contract shall be forthwith automatically determined by the said employment may be reinstated and continued if the Owner and the Contractor, his trustee in bankruptcy, liquidation, receiver or manager as the case may be shall so agree.

33.3 The Owner shall be entitled to determine the employment of the Contractor under this Contract. If the Contractor shall have offered or given or agreed to give to any person any gift or consideration of any kind as an inducement or reward for doing or for bearing to do or for having done or foregone to do any action in relation to the obtaining or execution of this Contract with the Owner, or for showing or forbearing to show favour or disfavor to any person in relation to this Contract or any other contract with the Owner, or if the like acts shall have been done by any person employed by the Contractor or acting on his behalf [whether with or without the knowledge of the Contractor], or if in relation to this Contract or any other contract with the Owner the Contractor or any person employed by him or acting on his behalf shall have committed any offense under the Prevention of Corruption Act, or shall have given any fee or reward the receipt of which is an offense under the Local Government Act.

33.4 In the event of the employment of the Contractor being determined as aforesaid and so long as it has not been reinstated and continued, the following shall be the respective rights and duties of the Owner and Contractor.

[a] The Owner/ PMC may employ and pay other persons to carry out and complete the Works and he or they may enter upon the Works and use all temporary buildings, plants, machinery, appliances, goods and materials intended for, delivered to and placed on or adjacent to the Works and may purchase all materials and goods necessary for the carrying out and completion of the Works.

[b] The Contractor shall if so required by the Owner or PMC within 14 days of the date of determination assigned to the Owner without payment the benefit of any agreement or the supply of materials or goods and/or for the execution of any Works for the purposes of this Contract but on the terms that a supplier shall be entitled to make any reasonable objection to any further assignment thereof by the Owner. In any case the Owner may pay any supplier for any materials or goods delivered or Works executed for the purpose of the Contract [whether before or after the date of the determination] in so far as the price thereof has not already been paid by the Contractor. The Owner's rights under this paragraph are in addition to his rights to pay nominated suppliers as provided in the relevant clause(s) and payments made under this paragraph may be deducted from any sum due or to become due to the Contractor.

[c] The Contractor shall as and when required in writing by the PMC so to do [but not before] remove from the Works any temporary buildings, plants, tools, equipment's, goods and materials belonging to or hired by him. If within a reasonable time after any such requirement has been made the Contractor, has not compiled therewith then the Owner may [but without

being responsible for any loss or damage] remove and sell any such property of the Contractor, holding the proceeds less all costs incurred to the credit of the Contractor.

[d] The Contractor shall allow or pay to the Owner in the manner herein after appearing the amount of any direct loss and/or damage caused to the Owner by the determination. Until after completion of the Works under paragraph (a) of this sub-clause the Owner shall not be bound by any provisions of this Contract to make any further payment to the Contractor, but upon such completion and the verification within a reasonable time of the accounts therefore the PMC shall certify the amount of expense properly incurred by the Owner and the amount any direct loss and/or damage caused to the Owner by the determination and if such amounts when added to the monies paid to the Contractor before the date of determination exceed the total amount which would have been payable on due completion in accordance with this Contract, the difference shall be a debt payable to the Owner by the Contractor, and if the said amounts, when added to the said monies be less than the said total amounts, the difference shall be a debt payable by the Owner to the Contractor.

33.5 Notwithstanding any other term specified in this Contract, the Owner shall have the right to terminate the service of the Contractor without cause, at its sole discretion by giving a thirty (30) days' notice to the Contractor.

34.0 Labour

34.1 The Contractor shall make his own arrangement for accommodation of labours at their own cost. No hutment for labour stay shall be allowed within Site and Society premises. Adequate sanitary and crèche arrangements to be made by the Contractor to keep the Site clean and hygienic.

34.2 The contractor shall employ no child labour less than 18 years of age on the Work. If female labour is engaged the Contractor shall make necessary provisions for safeguarding small children and keeping them clear of site operations. Including making of makeshift crèche on site with a proper attendant. Labour deployed by Contractor shall not stay on the Site.

34.3 Labour regulations

The Contractor shall be wholly and socially responsible for full compliance with the provisions under All Labour Laws and Regulations such as payment of wages Act 1948, Employees Liability Act 1938, Workmen's Compensation Act 1923, Industrial Disputes Act 1947, The Maternity Benefit Act 1961, The Contract Labour (regulations and abolition) Act 1970, BOCW and the Factories Act 1948 or any modification there of or any other law relating thereto and rules there under introduce from time to time. The contractor shall assume liability and shall indemnify the Owner from every expense, liability or payment by reason of the application of any labour law, act, rules or regulations existing or to be introduced at a future date during the term of the Contract. Insurance cover towards the above shall be effective by the Contractor. In general, in respect of all labour directly or indirectly employed in the Work for the performance of Contractor's part of the Contract, the Contractor shall comply all the rules framed by the government authorities, Concerned from time to time for protection of the health and welfare of the workers.

The contractor shall obtain valid license under the Contract Labour Act 1970 and the Contract Labour (Regulations & Abolition) Central rules1971 and under any other applicable rules before the commencement of the Work and continue to have a valid license until the completion of the Work

The Contractor shall provide required legal compliance certificate with the above-mentioned laws at the time of invoice submission.

34.4 Payment of Wages:

The Contractor shall pay the labour employed by him either directly or through sub-contractors' wages not less than fair wages as defined in the relevant local labour regulations or as per the provisions of the contract labour (Regulations & Abolition) Act 1970 and the contract labour

Regulations and the Abolition of central rules 1971 wherever applicable. He shall also abide by the minimum wages and other regulations applicable to the labour engaged in the Work, as laid down by the concerned local Authorities (Maharashtra state, District or other Local authorities).

34.5 Model Rules:

The Contractor shall at his own expense comply with or cause to be complied with, Model rules for labour welfare framed by government or other local bodies from time to time for the protection of health and for making sanitary arrangements, malaria control, etc. for workers employed directly or indirectly on the Work and in the workers hutment area. In case the contractor fails to make arrangements as aforesaid, the Owner shall be entitled to do so and recover the cost thereof the Contractor.

34.6 Safety Codes:

a) Contractor has to provide safety park as per instructions of PMC, at site with his own costs
b) In respect of all labour, directly or indirectly employed on the Work for the performance and execution of the Contractor's work under the Contract, the Contractor shall at his own expenses arrange for all the Safety provisions as listed in;
   - safety codes of C.P.W.D and Bureau of Indian Standards,
   - Electricity Act,
   - The Mines Act, and regulations rules and orders made there under and such other acts.

c) Precautions as stated in the safety clause are the minimum necessary and shall not preclude the Contractor taking additional safety precautions as may be warranted for the particular type of work or situations. Also, mere observance of these precautions shall not absolve the Contractor of his liability in case of loss or damage to property or injury to any person including but not limited to the Contractor labour, the Owner's, Architect/PMC's, Owner's Representative or any member of the public or resulting in the death of any of these.

d) All the PPES, safety helmets, boots, belts, nose wares, earplugs, goggles, hand gloves etc. shall be provided by the Contractor at his own cost to all his manpower on Site

e) The Contractor shall impose such requirements on all sub-contractors & vendors also. It shall be the responsibility of the Contractor to ensure that such protective gear is worn at all times by all personnel working at the Site during the term of the project. The PMC / Owner and Owner's representative shall each have the right to stop any person not wearing such protective gear from work on Site.

f) In case Contractor fails to make arrangements and provide necessary facilities as aforesaid, the Owner shall be entitled to do so and recover the costs thereof from the Contractor. The decision of the PMC / Owner's Representative in this regard shall be final and binding on the Contractor.

35.0 Guarantee

35.1 Besides guarantees required elsewhere, the Contractor shall guarantee the Work in general for twelve (12) months from the date of completion of the project.

35.2 All required guarantees shall be submitted to the PMC by the Contractor when requesting certification of accounts for payment by the Owner.

36.0 Arbitrator

All dispute and differences of any kind whatever arising out of or in connection with the Contract or the carrying out of the Works [whether during the progress of the Works or after the completion and whether before or after the determination, abandonment or breach of the Contract] shall be referred to and settled by a panel of three arbitrators. Contractor and Owner will appoint one

arbitrator each and the two arbitrators will appoint the judge. The decision of the arbitration tribunal shall be final and binding. The arbitration shall be conducted in accordance with the Arbitration and Conciliation Act, 1996. The place of arbitration shall be Pune.

37.0 SAFETY GUIDE FOR WORKS

37.1 INTRODUCTION

This guide is prepared to facilitate safe working during execution of Contract Works.

From Safety point of view, the Contractor shall have tie up with hospitals (in nearby locality) which should be clearly mentioned in the project EHS document. The name of tie up list of hospitals should be displayed on Site in order to make easy for people working there in case of emergency.

37.2 GENERAL SAFETY PROVISIONS

a) The Contractor shall ensure all safety precautions during the execution of awarded work and shall maintain and leave the Site safe at all times. At the end of each working day and at all times when the Work is temporarily suspended, he shall ensure that all materials, equipment and facilities will not, cause damage to existing property, personal injury or interfere with the other works of the project or station.

b) The Contractor shall comply with all applicable provisions of the safety regulations, cleanup programme and other measures that are in force at the Site.

c) The Contractor shall provide and maintain all lights, guards, fencing, warning signs, caution boards and other safety measures and provide for vigilance as and where necessary or as required by the PMC for the protection of workers or for the safety of others. The caution boards shall also have appropriate symbols. Adequate lighting facilities such as flood lights, hand lights and area lighting shall be provided by the Contractor at the Site, storage area of materials and equipment and temporary access roads within his working area.

d) The Contractor shall obtain written approval of the PMC to the lighting scheme and place of tapping prior to its installation.

e) The Contractor shall plan his operations so as to avoid interference with the other departmental works, other contractors or sub- contractors at the Site. In case of any interference, necessary coordination shall be sought by the Contractor from the PMC for safe and smooth working.

f) The Contractor and his sub-contractor, shall comply with the instructions given by the PMC regarding safety precautions, protective measures, housekeeping requirements, etc.

g) The PMC shall have the right to stop the Work of the Contractor, if in his opinion proceeding with the work will lead to an unsafe and dangerous condition. PMC may get the unsafe condition removed or provide protective equipment at the Contractor’s cost.

h) The Contractor shall employ his own safety engineer for ensuring compliance of all safety rules.

i) The Contractor shall ensure that all his workmen are aware about the nature of risk involved in their work and have adequate training for carrying out their work safely.

j) The Contractor shall be held responsible for non-compliance of any of the safety measures and delays, implications, injuries, fatalities and compensation arising out of such situations of incidents.

37.3 TRAFFIC

The Contractor shall conduct his operations so as to interfere as little as possible with the use of existing roads at or near locations where the work is being performed. When interference to traffic

is inevitable, notice of such interference shall be given to the PMC well in advance (at least 48 hours) with the details of start of the work and time required, storage of materials, and details of the proposed methods of providing the required facilities for safe and continuous use of roads and obtain his clearance. The contractor shall, at his own expense, make such approved temporary provisions as are required to maintain at least one lane of traffic by bridging the excavation, providing ramps over surface obstructions or providing suitable temporary bye-pass around the obstructions. The Contractor shall exercise full care to ensure that no damage is caused by him or his workmen, during the operation, to the existing water supply, sewerages, power or telecommunication lines or any other services or works. The contractor shall be required to provide and erect before construction, substantial barricades, guard-rails, and warning signs. He shall furnish, place and maintain adequate warning lights, signals, etc., as required by PMC.

37.4 SAFE MEANS OF ACCESS

a) Adequate and safe means of access and exit shall be provided for all workplaces, at all elevations. Using of scaffolding members (avoiding a ladder) for approach to high elevations shall not be permitted.

b) Suitable scaffolds shall be provided for workmen for all works that cannot safely be done from the ground, or from solid construction except such short duration work as can be done safely from ladders. Ladder shall be of rigid construction having sufficient strength for the intended loads and made either of good quality wood or metal and all ladders shall be maintained well for safe working condition. An extra mazdoor shall be engaged for holding the ladder if ladder is not securely fixed. If the ladder is used for carrying materials as well, suitable foot holds and hand holds shall be provided on the ladder. The ladder shall be given an inclination not steeper than 1 in 4 (1 horizontal and 4 vertical). Ladders shall not be used for climbing carrying materials in hands. While climbing both the hands shall be free.

c) Scaffolding or staging more than 3.5m above the ground or floor, swung or suspended from an overhead support or erected with stationary support shall have a standard guard rail properly attached, bolted, braced or otherwise secured at least 1.0m high above the floor or platform of such scaffolding or staging. The guard rail shall extend along the entire exposed length of the scaffolding with only such opening as may be necessary for the delivery of materials. Standard railing shall have posts not more than 2m apart and an intermediate rail halfway between the floor or platform of the scaffolding and the top rail. Such scaffolding or staging shall be so fastened as to prevent it from swaying from the building or structure. Scaffolding and ladder shall conform to relevant IS specification (IS: 3696-1966). Timber/Bamboo scaffolding shall not be used.

d) Working platforms of scaffolds shall have toe boards at least 15cm in height to prevent materials from falling down. A sketch of the scaffolding proposed to be used shall be prepared and approval of the PMC obtained prior to start of erection of scaffolding. All scaffolds shall be examined by PMC before use.

e) Working platform, gangways and stairways shall be so constructed that they shall not sag unduly or unequally and if the height of the platform or gangway or stairway is more than 3.5m above ground level or floor level, they shall be closely boarded, shall have adequate width for easy movement of persons and materials and shall be suitably guarded as described in 3.3 above. The Planks used for working platform shall not project beyond the end supports to a distance exceeding four times the thickness of the planks used. The planks shall be rigidly tied at both ends to prevent sliding and slippage. The thickness of the planks shall be adequate to take load of men and materials and shall not collapse.

f) Every opening in the floor of a building or in a working platform shall be provided with suitable means to prevent fall of persons or materials by providing suitable fencing or railing, the minimum height of which shall be 1.0m, along with 15 cm high sheet obstruction at floor level along the railing.

g) Safe means of access shall be provided to all working platforms and other elevated working places. Every ladder shall be securely fixed. No single portable ladder shall be over 9m in length. For ladders

upto 3m in length the width between side rails in the ladder shall in no case be less than 300mm. For longer ladders this width shall be increased by at least 20mm for each additional meter of length. No scaffolding, ladder, working platform, gangway runs, etc. shall exist within 3 meters of any uninsulated electric wire. Whenever electric power and lighting cables are required to run through, (pass on) the scaffolding or electrical equipment's are used, such scaffolding structures shall have minimum two earth connections with earth continuity conforming to IS code of practice.

37.5 DEMOLITION

a) Before demolition operations begin, the Contractor shall ensure that the power on all electric service lines is shut off and the lines cut or disconnected at or outside the demolition site. If it is necessary to maintain electric power during demolition operation, the required service lines shall be adequately protected against damage. Persons handling heavy materials/equipment shall wear safety shoes.

b) No floor, roof or other part of the building shall be overloaded with debris or materials as to render it unsafe.

c) Entries to the demolition area shall be restricted to authorized persons only.

37.6 PERSONAL PROTECTIVE EQUIPMENT

All necessary personal protective equipment considered necessary for the Works activity shall be kept available by the Contractor for the use of the persons employed on the Site and maintained in a condition suitable for immediate use. Also the Contractor shall take adequate steps to ensure proper use of equipment by those concerned. The personal protective equipment's are to be provided by the Contractor.

a) All persons employed at the construction site shall use safety helmets. For other types of works, persons working in that area shall also use safety helmets, if advised by safety engineer/PMC.

b) Workers employed on mixing asphaltic materials, cement and lime mortars shall use protective goggles, protective foot-wear and hand gloves. Use of proper respirators shall be an advantage. Persons engaged in welding and gas cutting works shall use suitable welding face shields. The persons who assist the welders shall use suitable goggles. Protective goggles shall be worn while chipping and grinding.

c) Stone breakers shall use protective goggles. They shall be seated at sufficiently safe intervals of distance.

d) Persons engaged in or assisting in shot blasting operations and cleaning the blasting chamber shall use suitable gauntlets, overalls, dust-proof goggles, boots and protective hood supplied with fresh air at the minimum rate of 9 m3 /hr.

e) All persons working at heights more than 4.5m above ground or floor and exposed to risk of falling down shall use safety belts, unless otherwise protected by cages, guard railings, etc. In places where the use of safety belts is impractical, suitable net of adequate strength fastened to substantial support shall be employed.

f) All powered two- wheeler motorcycle and scooter drivers and their pillion riders shall wear crash helmets inside the project/plant sites.

g) When workers are employed in sewers and inside manholes which are in use, the Contractor shall ensure that the man-holes are opened and are adequately ventilated at least for an hour. After it has been well ventilated, the atmosphere inside the space shall be checked for the presence of any toxic gas or oxygen deficiency and recorded in the get register before the workers are allowed to into the man-holes. The manholes opened shall be cordoned off with suitable railing and provided with

warning signals or caution boards to prevent accidents. There shall be proper illumination in the night.

37.7 LIFTING MACHINES AND TACKLES

Use of lifting machines and tackles including their attachments, anchorage and supports shall conform to the following standards or conditions.

a) Lifting machines and tackles shall be of good mechanical construction, sound material and adequate strength and free from any defects and shall be kept in good repair and in good working order. Every rope used in hoisting or lowering materials or as a means of suspension shall be of good quality and adequate strength and free from any defect.

b) Every crane operator or lifting appliance operator shall be properly qualified. No person under the age of 21 years shall be in charge of any hoisting machine or give signal to operator of such machine.

c) In case of every lifting machine (and of every chain, ring, hook, shackle, swivel and pulley block used in hoisting or as means suspension) the safe working load shall be ascertained and clearly marked. In case of a lifting machine having a variable safe working load, each safe working load and the conditions under which it is applicable shall be clearly indicated. No part of any machine or any gear referred to above in this paragraph shall be loaded beyond the safe working load except for the purpose of testing. This shall be approved by the PMC.

37.8 FIRE SAFETY

All necessary precautions shall be taken to prevent outbreak of fires at the construction site. Adequate provisions shall be made to extinguish fires should they still break out.

a) Quantities of combustible materials like timber, bamboos, coal, paints, etc., shall be the minimum required in order to avoid unnecessary accumulation of combustibles at Site.

b) Containers of paints, thinners and allied materials shall be stored in a separate room which shall be well ventilated and free from excessive heat, sparks, flames or direct rays of the sun. The containers of paint shall be kept covered or properly fitted with lid and shall not be kept open except while using.

c) Adequate number of workmen shall be given education and training in firefighting and extinguishing methods. Fire extinguishers as approved by the PMC shall be located at the construction site at appropriate places.

37.9 WORK IN AND AROUND WATER BODIES

When the work is done near any place where there is risk of drowning, all necessary rescue equipment such as life buoys and life jackets shall be provided and kept ready for use and all necessary steps taken for prompt rescue of any person in danger and adequate provision shall be made for prompt first-aid treatment of all injuries likely to be sustained during the course of the work. Persons who do not know swimming shall not be engaged alone for any work where risk of drowning exists. Sufficient number of life buoys or life jackets shall be provided.

37.10 MEDICAL FACILITIES

The Contractor shall arrange adequate facilities for medical aid and treatment for his staff and workers engaged on the Site including the first-aid facilities if they are not available at the project site. First-aid appliances including sterilized dressing, cotton wool and antiseptic cream shall be made available at readily accessible places at every work site. These shall be maintained in good order under the charge of a responsible person.

37.11 SAFETY OFFICER/SAFETY COORDINATOR

The Contractor shall have a Safety officer or a supervisor to be designated as a Safety Coordinator

in order to specifically look into the implementation of different safety requirements of the Work. The person thus designated will in general co-ordinate with the PMC on matters of safety and in particular ensure that the safety guide is complied with fully. His name shall be displayed on the notice board at a prominent place at the Site.

37.12 REPORTING OF ACCIDENT

All accidents leading to property damage and/or personnel injuries shall be reported to the PMC immediately who shall inform the Client to be followed up with detailed accident reports in prescribed form. The Contractor shall also submit a monthly statement of accidents to PMC by 4th of every month showing details of accident, nature of injury including disability, days lost, treatment required, etc., and the extent of property damage.

37.13 PUBLIC PROTECTION

The Contractor shall make all necessary provisions to protect the public. He shall be bound to bear the expenses for defense of every action or other proceedings at law that may be brought by any person for injury sustained owing to neglect of any precaution required to taken to be protect the public. He shall pay any damage and cost which may be awarded in any such suit, action or proceeding to any such person, or the amount which may be fixed as a compromise by any such person.

38.0 In the above-mentioned clauses, “relevant clause”, wherever mentioned, it will be the final decision of the PMC about which clause to refer for a particular situation.

SECTION II-

SPECIALCONDITIONS OF CONTRACT

SECTION - II SPECIAL CONDITIONS OF CONTRACT

1.0 GENERAL :

The Special Conditions of Contract are an extension of and are to be read in conjunction with the General Conditions of Contract. Should there be any contradictory requirements in the two, the requirement as per the Special Conditions of Contract shall prevail.

2.0 CONTRACT

2.1 This Contract is an Item Rate Contract.

2.2 The quantities mentioned in the bill of quantities are estimated only. Architect / Owner /PMC reserves the right to itself the right of altering the drawings and nature of work by adding to or omitting any items of Work or having portions of the same carried out without prejudice to this Contract. There shall be no limit on the scope and extent the changes that can be ordered by the Owner and the Contractor shall not be entitled to any compensation or claim due to such change(s) / order(s) by the Architect / Owner /PMC. The Contractor will only be paid for the actual quantities based on joint measurement of works done at the agreed unit rates.

2.3 The Contractor is bound to carry out any and all items of Work necessary for the completion of the job even though such items are not included in the quantities and rates. Schedule of instructions in respect of such additional items and their quantities will be issued in writing by the PMC/Client.

2.4 The Contractor shall be paid solely on the basis of the rates quoted by him in the bill of quantities, based on the joint measurements recorded of work actually carried out at Site.

2.5 No escalation in rates, in any circumstances shall be allowed.

3.0 MATERIAL :

3.1 Contractor shall procure and provide the whole of the materials including building materials, tools, tackles, construction and equipment for the completion and maintenance of Work and shall make his own arrangement for procuring such materials and for the transport thereof.

3.2 The Owner shall have the option to supply the major material to the Contractor. Also if the Contractor constantly fails to maintain the minimum stock of material required for scheduled activities or delays the payments of material suppliers /subcontractor and in the opinion of PMC/Owner such reasons affect the progress of Work, the Owner reserves the right to supply such materials in the interest of progress of work. If supplied by the Owner, the sums due from the Contractor for the value of materials supplied will be recovered in full, from the running account bills.

3.3 Conditions for Owner issued material :

a) Reconciliation of all materials supplied by the Owner will be done by the PMC upon submission of Running Bill by the Contractor.

b) The Contractor shall intimate in writing the total quantity of materials required and shall intimate the same to the PMC/ Owner well in advance with a minimum of 30 days and 60 days for long lead items before the actual requirement at Site. The Owner there upon shall procure such quantities of materials indented and issue the same to the Contractor.

c) The Contractor shall be responsible from thereon for unloading, storage, double handling, and safe custody of material and use of the total quantity of such materials supplied. Loss if any shall be to the Contractor’s account.

d) It shall be the duty of the Contractor to inspect the materials supplied to him at the time of taking delivery and satisfy himself that they are in good condition. After the materials have been delivered by the Owner, it shall be the responsibility of the Contractor to keep them in good condition and if the materials are damaged or lost, at any time, they shall be repaired and / or replaced by him at his own cost according to the directions of the PMC / Architect.

e) Wastages

The material consumed in the Work computed from the quantities certified in the bill and issued will be reconciled. In arriving at the final quantity, wastages as determined by PMC, shall be allowed and the PMC decision shall be final and binding.

4.0 QUALITY ASSURANCE AND CONTROL PROGRAMME :

The Contractor shall establish an effective quality control system at the Site in coordination with the PMC and implement the same through an independent qualified and experienced engineer to enforce quality control on all items of the Work and the Project at all stages.

4.1 Scope:

The scope of Quality Assurance (QA) requirements is as follows:

a) Preparation of a Quality Assurance Plan by the Contractor, which is hereafter referred to as "Project Quality Plan or PQP".
b) Performance of:
   - Quality Assurance (QA) and
   - Quality Control (QC) activities at site
c) Documentation of the above.

4.2 Quality assurance shall include, but shall not be limited to,

a) The Contractor's provision and maintenance of quality assurance in conjunction with his subcontractors as approved by PMC. The program shall provide inspection and testing of materials, products during construction and installation as PMC may deem necessary to ensure that Work is performed in compliance with the Contract documents. Such inspection and testing shall be performed at no additional expense to the Owner.

b) Inspection and testing required by the orders, laws, ordinances, rules and regulations of local authorities.

c) Employment of independent professional inspection and laboratory testing forms to supervise laboratory testing services as specified in the applicable codes or specification and under the review and approval of the PMC.

d) Provision of inspection and testing instruments and devices required to ensure proper performance of quality assurance at the job Site.

e) Verification by affidavits and certification that specified products meet requirements of reference standards as specified in applicable codes/specification.

f) Testing, balancing and adjusting of equipment as specified in applicable codes.

4.3 Schedule of Quality Assurance operations:

The Contractor shall provide the PMC with a minimum of three copies of a schedule of quality assurance operations, both on-site and off-site to outline the procedures, instructions and reports which

will be used, as follows:

a) Quality assurance organization
b) Qualifications of quality assurance personnel
c) Authority and responsibilities of each quality assurance person
d) Schedule of inspections and tests with personnel assigned to each task and duration of each task.
e) Schedule of required services to be provided by inspection and testing firms.
f) Co-ordination required in order that quality assurance is integrated
g) Test methods which will be utilized.
h) Methods of performing and documenting quality assurance operations.

The Contractor shall be responsible for timely submission of duly certified formats accompanied with a covering letter and index. The formats, duly filled-in shall each bear a number as per a unique numbering system adopted at site as instructed by the PMC. The formats duly filled-in shall be presented in a proper folder/file.

5.0 PERFORMANCE BOND/ SECURITY :

5.1 The Contractor shall furnish a performance bond in the form of a bank guarantee from a scheduled bank approved by the Owner /PMC, for the value of 10% of Contract Sum within Fifteen (15) days of date of award of Work. The bank guarantee shall be in the approved format and valid till 90 days after the expiry of the Defects Liability Period.

5.2 The Contractor shall extend the validity of the Performance bond suitably, if it is required, due to delay in acceptance of the Works for reasons attributable to the Contractor, at its own cost well in time and in any extent at least 30 (thirty) days before the expiry of the period of validity thereof. The bank guarantee will not bear any interest or any related costs.

5.3 In case the Contractor fails to fulfil its obligations under the Contract, the Performance Security may be invoked by the Owner as part compensation for any loss resulting from Contractor's failure to perform and fulfil the Work and its obligations under the Contract without prejudice to any of the rights or remedies of the Owner under the Contract or otherwise in law.

5.4 The bank guarantee being reduced by reasons of any recovery as mentioned above, the Contractor shall within Ten (10) days thereafter make good in the form of bank guarantee in prescribed proforma any sum or sums which may have been recovered from or realised by enforcement of the bank guarantee, or any part thereof.

5.5 Notwithstanding anything contained above, the Contractor agrees and acknowledges that the Performance Security may be invoked by the Owner at its sole discretion.

5.6 Failure to lodge the required Performance Bank Guarantee shall constitute sufficient grounds for the annulment of the award, in which event the Work may be awarded to any of the other contractors.

6.0 PAYMENTS AND SECURED ADVANCE :

6.1 Billing

a) The Contractor shall prepare measured bills in approved proforma by the PMC with all supporting documents once per month or per agreed billing period and submit the same to the PMC with copy to Owner for checking and issue of interim certificate. Bills are to be submitted on 1st week of every month.

b) The PMC and Contractor’s authorized person shall make joint measurements and sign on it. After bill is submitted and certified and checked by the PMC the Owner may release seventy per cent of bill amount within ten days and remaining within a period of twenty days from the date of bill.

c) Despite of requests by the PMC, if the Contractor's authorized person does not come for recording and signing the measurements, then the PMC can carry out the measurements alone and they will be deemed to have been accepted by the Contractor.

6.2 Payment of Bills

A. RUNNING ACCOUNT BILLS:

The Contractor shall submit the Running Account Bills as per agreed billing period and terms along with detailed measurements, abstract sheets, deviation statement for on-going and completed work, purchase bills, materials reconciliation statement and any specific instructions which may be given in this regard by the PMC.

The Contractor shall submit, along with its invoice, a compliance certificate in the format prescribed by the PMC /Owner from time to time. The compliance certificate to be submitted by the Contractor shall include all the Statutory Compliances, quality and safety compliances.

B. INTERIM PAYMENT CERTIFICATE

Within Seven (7) days of submission of RA bills to the PMC, the PMC will recommend for payment amount (Adhoc) of maximum 70% of the value of work done (net amount due to the Contractor after deductions) executed by the Contractor provided supporting documents requested by the PMC are furnished at the time of submission of bills. The Contractor will be paid by the Owner the certified amount within Ten (10) Working days of receipt of PMC's certificate for payment.

Deductions : Necessary deductions will be made against advance payment, recoveries, statutory compliances, back charges for failure to comply with Contract documents, correction for defective works, etc as decided by the PMC.

C. FULL CERTIFICATION

The full certification of Running Account Bills will be done by the PMC within Twenty one (21) working days from the date of the bill submitted with all clarifications and supporting documents requested by the PMC / Owner. The Contractor will be paid by the Owner the certified amount within Ten (10) working days (Monday thru' Friday) of receipt of PMC's certificate for payment.

D. ADHOC PAYMENT FACILITY

If after reconciliation of accounts and certification of the work done if it is found that the Contractor was entitled to lesser amount than the amount already paid under this subclause, Contractor shall either repay the additional amount so paid or if not repaid the same shall be deducted from the next payment due to the Contractor and if no payment is due and the Contractor is not willing or fails or neglects to repay the same then same shall be recovered by enforcing / encashing any securities / bank guarantees in spite of the fact that the same may have been originally given for some other purpose.

However, if it is found that the variation in value between the certified bill and the uncertified bill is more than ten percent (10%) then the Contractor loses the facility of Adhoc payment of seventy percent (70%) and shall be paid once the bill is certified; and

E. RETENTION

Deduction towards retention money shall be made at Five (5)% of the value of Work as certified by the PMC from every running/interim bill. Retention Money will be released to the Contractor completion of Defects Liability Period, provided the building is then free of defects and the Contractor has rectified all defects identified by the PMC/ Architect / Owner. The Retention Money shall not carry interest.

F. FINAL BILL

The Contractor shall submit the final bill within one (1) month of the date fixed for Virtual Completion of the Work or of the date of the Virtual Completion Certificate furnished by the PMC whichever is later. The PMC within sixty (60) Working days certify the final bill from the date of the bill submitted with all supporting documents. The Contractor shall be paid by the Owner within Thirty (30) working days of receipt of the PMC's Certificate. The Contractor shall submit a list of the disputed items within thirty days from the disallowance thereof and if he fails to do this, his claim shall be deemed to have been fully waived and absolutely extinguished. No further claim shall be made by the Contractor after submission of the final bill and these shall be deemed to have been waived and extinguished.

The Contractor need to submit "NO CLAIM CERTIFICATE" and "PROJECT HANDING OVER" documents as per the standards formats provided by the PMC / Architect to Owner before certifying the Final bill.

7.0 FORM WORK, SCAFFOLDING AND FALSE WORK

Notwithstanding any other provision mentioned in Contract documents, the Contractor shall be responsible for the design, stability, supply, fixing, alignment and safe removal of all form work, false work and supports, scaffolding etc. The Contractor shall appoint specialist, competent structural consultant for design of false work, scaffolding and form work and submit the approval certificate 14 days prior to the work. The Contractor & its approved structural consultant should approve actually laid/ placed formwork etc. prior to casting and submitting the certification for stability & clearance for concrete pouring. Contractor shall be fully responsible for that part of Works.

8.0 COORDINATION AND COOPERATION.

The Contractor shall give reasonable facilities to the other contractor and/or contractors appointed by the employer for the particular work and the Contractor will give intimation from time to time to the other contractors of different stages of Work. The contractors other than the Contractor shall work in conjunction with the Contractor and to the advantage of the general progress of the Work so as to avoid any delay in the agreed period for the completion of the Contract. In case of any dispute, the decision of the company PMC shall be final and binding. These agencies will, however, be asked not to damage any work pertaining to the Contractor.

9.0 GREEN BUILDING CERTIFICATION (IGBC) :

The Owner aspires to get Green Building Certification (IGBC) for the new construction. The Contractor hereby agrees to strictly follow the guidelines and instructions issued by PMC/ IGBC consultant from time to time during execution period related to their Works. The Contractor shall extend its full support to the PMC and IGBC consultant by providing relevant data, documentation etc. necessary for securing the said certification.

10.0 SOCIETY (FLORIDA ESTATES 'A 'CO-OP HOUSING SOCIETY LTD.) GUIDELINES

The Contractor and its subcontractors, vendors, shall strictly follow the Society guidelines for performing their activities within the Society premises.

10.1 Security of the material shall rest with the Contractor. The Contractor shall inform the Society security regarding the entry and exit of any material or manpower in duly filled standard formats. (Entry registers to be filled for material entering and for exist of material gate passes shall be issued.)

10.2 All workmen should have valid Identity Card, displayed prominently at all times.

10.3 Security of Society has the liberty and authority to check any person or material at any given point of time. However The Society security has been instructed that such checks should not hinder with the work.

10.4 The Contractor shall ensure that, as far as possible, the execution works and material unloading inside plot premise is carried out without causing any noise.

10.5 The Contractor shall ensure that the disposal of debris is done outside Society premises. The disposal should be done on a regular basis and the site should be kept neat and clean at all times. The Contractor shall always ensure no construction material or debris is left on the road.

10.6 No hazardous material and techniques shall be used during the construction works.

10.7 No personnel shall be allowed to reside at the Site. The Contractor to create arrangements for the laborers outside Society.

10.8 The Contractor shall ensure that he shall take adequate measures to see to it that the construction personnel do not move around everywhere causing nuisance to the other occupants of the Society.

10.9 Working hours on site is 9.00 a. m. to 7.00 p. m. with 2.00pm to 4.00pm break. Furthermore, all material arriving at the site including loading and unloading shall be permitted within working hours only.

10.10 No works shall be carried out on all Sundays & Public Holidays.

10.11 All communications to the Society shall be done through PMC / Owner.

10.12 Society reserves the right to stop the work of any contractor, laborers. Etc. if found not complying with the rules and. regulations of the Society, whatsoever.

10.13 The Contractor agrees to adequately and reasonably compensate the Society for any damages or losses to the properly of the Society because of my act, omission on the part of its employees, contractors, vendors etc. while performing its activities. The amount of compensation payable shall not be more than to the extent of losses and the cost required to repair and to make good the damages.

10.14 It has been further agreed that the Contractor shall be solely responsible in case of accidents involving its employees, machinery, equipment.

10.15 The Contract shall be fully responsible for any nuisance/ illegal activity of his labors

10.16 Playing of loud music, television, transistor (radio) etc.by the labors shall not be allowed.

10.17 Consumption of liquor and spitting of gutka/pan masala etc by the labors is strictly prohibited within the Society premises, if found such will be penalized.

10.18 Labors are not allowed to use common facilities meant for Society. i.e. Lawn, Podium, Club House, Parking etc.

11.0 GENERAL

11.1 The Contractor shall carry out all Work strictly in accordance with drawings, details and instructions of the Architects / PMC and other Consultants. If, in the opinion of the Architect or the Consultant, changes have to be made in to achieve performance levels, the Contractor shall carry out the same without any extra charge. The PMC' decision in such cases shall be final and shall not be open to arbitration/litigation.

11.2 For area lighting, task lighting, night work if any, all arrangements for like wiring, Bulbs etc., will be in scope of the Contractor.

11.3 Violation of any of the above terms shall lead to termination of the Works permanently without any intimation to the Contractor and no compensation shall be paid in any case.

11.4 The Contractor shall comply with all Norms / guidelines enforced by PMC's (Pune Municipal Corporation) concerned departments for Dust, Noise & Air Pollution control., including Vehicle tyre cleaning by water before movement on roads, green net covering for all material vehicle, Road Cleaning etc. Necessary required arrangements such as Vehicle tyre cleaning ramp etc. shall be made by the Contractor to ensure that construction activities minimize disruption to the Site ecology and local environment.

In case of separate contract, the contractor whose work does not conform to dimensions called for, shall be liable for all the expenses which may have to be incurred for rectification or replacement as may be required by the PMC for the proper installation of the finishing elements. The PMC's decision in this respect shall be final and binding on the parties concerned.

12. General conditions regarding workmanship & work procedures:

1. Standards &Compliance

All skylight works shall be executed in accordance with approved drawings, shop drawings, manufacturer's recommendations, relevant IS codes, and project specifications.

2. **Materials -**

- Only approved materials (glass, polycarbonate, aluminium/MS framing, sealants, fasteners, gaskets, etc.) shall be used.
- Materials shall be free from defects, cracks, warping, or surface damage.
- Glass shall be safety glass (toughened/laminated) as specified / as per manufacturer's specification details.

3. **Workmanship**

- Workmanship shall be of high quality, true to line, level, and plumb.
- Joints shall be uniform, neat, and properly aligned.
- No visible gaps, uneven edges, or misalignment shall be permitted.

4. **Fabrication & Installation**

- All framing members shall be accurately fabricated and properly fixed to the supporting structure.
- Adequate tolerances shall be maintained for thermal movement of glass and framing.
- Glass installation shall be carried out only after completion and approval of framing.
- MS Fabrication to be painted with one coat of zinc chromite primer and two coat Paint as per final selection.

5. **Waterproofing & Drainage**

- Proper slope, flashing, and gutter arrangements shall be provided to avoid water stagnation.
- All joints shall be sealed with approved weather-resistant sealants.
- The skylight system shall be fully watertight under all weather conditions.

6. **Fixing & Fasteners**

- Fasteners shall be of corrosion-resistant material (SS / GI as specified).
- Fixings shall be concealed wherever possible and shall not damage glass or framing.

7. **Protection & Safety**

- Adequate protection shall be provided to glass and finished surfaces during execution.
- Safety measures including PPE, scaffolding, lifelines, and fall protection shall be strictly followed.
- Glass handling shall be done with proper lifting tools and trained manpower.

8. **Co-ordination**

- Contractor shall coordinate with structural, waterproofing, and finishing agencies to avoid damage or rework.
- All openings and interfaces with RCC/MS structure shall be checked prior to installation.

9. **Mock-up & Approval**

- A mock-up/sample installation may be required for approval before bulk execution.
- Final work shall match the approved sample.

10. **Inspection & Testing**

- All skylight installations shall be inspected for alignment, fixing, and sealing.
- Water leakage testing shall be carried out and rectified if any defects are observed.

11. **Cleaning & Handover**

- On completion, all glass surfaces shall be cleaned without scratches or stains.
- Protective films shall be removed only at the time of final handover.

12. **Warranty & Defects Liability**

- Contractor shall provide warranty for glass, framing, and sealants as specified.
- Any defects observed during the defects liability period shall be rectified at no extra cost.